



National Insurance (Industrial Injuries) (Amendment) Act 1967

1967 CHAPTER 25

An Act to amend the enactments providing for benefits out of the Industrial Injuries Fund in respect of industrial diseases; and for connected purposes.

[10th May 1967]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) Subject to subsection (2) of this section, the following enactments, namely—

- (a) paragraph (a) of section 58(1) of the National Insurance (Industrial Injuries) Act 1965 (hereafter in this Act referred to as “the Industrial Injuries Act”);
- (b) paragraph (b) of section 4(1) of the Workmen's Compensation and Benefit (Amendment) Act 1965; and
- (c) the definition of “pneumoconiosis” in section 6(1) of the Pneumoconiosis and Byssinosis Benefit Act 1951 (hereafter in this Act referred to as “the Benefit Act”),

Further provision as to certain respiratory diseases.
1965 c. 52.
1965 c. 79.
1951 c. 4.
(15 & 16 Geo. 6 & 1 Eliz. 2.)

shall each have effect as if after the word “tuberculosis”, in both places where that word occurs, there were inserted the words “emphysema or chronic bronchitis”.

(2) Subsection (1) of this section shall have effect only in relation to a person the extent of whose disablement resulting from pneumoconiosis, or from pneumoconiosis accompanied by tuberculosis, would, if his physical condition were otherwise normal, be assessed under the Industrial Injuries Act at not less than fifty per cent. or, as the case may be, be determined in accordance with the relevant scheme made under the Workmen's Compensation (Supplementation) Act 1951 (hereafter in this Act referred to as “the Supplementation Act”) or made under the Benefit Act to be of comparable gravity.

1951 c. 22.

(3) A scheme under the Supplementation Act or under the Benefit Act may include provision for the payment or award in respect of any period beginning on or after the passing of this Act of an allowance under the Act in question at a rate increased by virtue of this section without any further award or, as the case may be, any further claim, in a case where sufficient evidence of the satisfaction of the conditions for that increased rate has already been supplied.

(4) Where a statutory instrument containing regulations under the Industrial Injuries Act or a scheme under the Supplementation Act or the Benefit Act is made before the expiration of the period of six months beginning with the date of the passing of this Act and contains a statement that the regulations are, or, as the case may be, that the scheme is, made in consequence of this Act, then section 62(2) of the Industrial Injuries Act (which requires any proposal to make such regulations to be referred to the Industrial Injuries Advisory Council for consideration and advice) shall not apply to those regulations, or, as the case may be, section 1(4) of the Supplementation Act or section 1(5) of the Benefit Act, so far as the said section 1(4) or 1(5) provides that any such scheme shall not be made unless a draft of it has been laid before Parliament and approved by resolution of each House, shall not apply to that scheme, which shall instead be subject to annulment in pursuance of a resolution of either House of Parliament.

Expenses.

2. Subject to the provision made by section 61 of the Industrial Injuries Act for reimbursement out of the Industrial Injuries Fund, there shall be paid out of moneys provided by Parliament any increase attributable to this Act in the expenses of the Minister or any other government department which are so payable under that section or under that section as applied by section 3(5) of the Supplementation Act or by section 4(1) of the Benefit Act.

Citation, construction and extent.

3.—(1) This Act may be cited as the National Insurance (Industrial Injuries) (Amendment) Act 1967.

(2) This Act, so far as it relates to the subject-matter of the Industrial Injuries Act, shall be construed as one with that Act and may be cited together with the National Insurance (Industrial Injuries) Acts 1965 and 1966 as the National Insurance (Industrial Injuries) Acts 1965 to 1967.

(3) Any reference in this Act to any enactment shall be construed—

(a) except where the context otherwise requires, as a reference to that enactment as amended, extended or applied by or under any other enactment; and

(b) as including a reference to the corresponding provision of any Act passed during the same Session as this Act which repeals and re-enacts that enactment.

(4) Without prejudice to the operation in relation to Northern Ireland of section 83(5) of the Industrial Injuries Act, section 5(3) of the Supplementation Act or section 4(1) of the Benefit Act, this Act shall not extend to Northern Ireland.